

**NON COMPETITIVE MEMORANDUM
FOR SIMPLIFIED ACQUISITION ACTIONS
IAW FAR 13.101-3(b)**

1. **REQUIRING AGENCY** – DOJ/Bureau of Prisons, FCI Ashland

2. **NATURE/DESCRIPTION OF ACTION BEING APPROVED** – Sole source acquisition

3. **DESCRIPTION OF SUPPLIES OR SERVICES REQUIRED TO MEET THE AGENCY'S NEEDS** As part of the mission of the institution, comprehensive medical services are provided to the inmate population. In meeting the healthcare needs of the inmate population, the BOP provides essential medical, dental, and mental health services to Federal inmates. When a medical need arises that cannot be provided by the institution medical staff, referrals are made to community-based medical providers. These services include Inpatient/Outpatient Facility and Physician services, as well as Outpatient Institution Services of Mobile MRI, Cardiology, Orthopedic Surgeon, Mobile Ultrasound/Echo, General Surgeon, Physical Therapy, Psychiatry, Urologist, and Optometrist. The services will be procured by purchase orders. The proposed performance period will be from August 1, 2026, through August 31, 2026. Estimated value of requirement is \$188,000.00.

4. **IDENTIFICATION OF STATUTORY AUTHORITY PERMITTING OTHER THAN FULL AND OPEN COMPETITION** – 41 U.S.C. 253; 41 U.S.C. 1901(e)

5. DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF THE AUTHORITY CITED:

Seven Corners, Inc. (Seven Corners) is the incumbent and has agreed to continue at the previously negotiated contract rates. FCI Ashland's comprehensive medical contract has expired, and this ensures continuity of care while a new multi-year agreement is negotiated by the Field Acquisition Office. This interim acquisition is necessary pending competitive award of a CMS contract. The incumbent contractor continues to provide the necessary medical services through their established network of local medical facilities and physicians. The immediate availability of community-based health care services is critical to avoid any disruption in obtaining the necessary medical services and to ensure the orderly operation of the institutions. In an effort to maintain continuity of care, the Government has determined that it is in the best interest to continue to utilize Seven Corners who can provide the required medical services without delay. This has been determined to be fair and reasonable, and in the Government's best interest. Their established medical network ensures the institution's medical needs are fulfilled and their network of medical service providers alleviates delay and disruption of the overall mission of basic and emergency medical care. Any delay could lead to serious injury to the Government, as it would greatly impact our medical mission, patient care, and could cause operational disruptions to the inmates. While market research has indicated that comprehensive medical services are commonly available in the commercial marketplace and has identified several vendors capable of meeting the Government's needs, Seven Corners, as the incumbent, is the only provider able to ensure seamless service delivery without any lapse in performance. No other sources with the ability to provide services immediately, with no lapse in service, have expressed written interest in this acquisition.

CONTRACTING OFFICER'S CERTIFICATION:

I certify this justification is accurate and complete to the best of my knowledge and belief.

Contracting Officer